

25NNCV06382 25NNCV06382

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C09%2F09%2F2026

Source SHA-256: 1f67491260e2dca5fffd2b10a57b3ad3d3d7cea0f4bfe15a5d9dc6d2468e6380

Case Number: 25NNCV06382 Hearing Date: September 9, 2026 Dept: T

Jessica

De Soto vs. Judy Wizel, Trustee of The Judy Wizel Family Trust, a California Trust, and Does 1 Through 10, Inclusive

Motion

to Compel Defendant's Initial Responses to Special Interrogatories, Set Three

Moving Party: Plaintiff Jessica De

Soto

Responding Party: Defendant

Judy Wizel, Trustee of The Judy Wizel Family Trust, a California Trust

Tentative Ruling: Deny

in part, grant in part

RULING

Although the Court finds that Plaintiff Jessica De Soto ("Plaintiff") properly served Defendant Judy Wizel, Trustee of The Judy Wizel Family Trust, a California Trust ("Defendant") with a third set of special interrogatories on June 8, 2026, and that Defendant failed to timely respond to these interrogatories, as Defendant appears to have served verified responses, without objections, to this third set of special interrogatories during the pendency of this motion, the Court shall exercise its discretion and deny the instant motion as essentially unnecessary.

(Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409.)

Furthermore, though the motion is denied as moot, given the absence of any circumstances that would make the imposition of sanctions unjust, the Court shall impose sanctions. (Code Civ. Proc. § 2030.290, subd. (c).) However, in imposing sanctions, the Court retains “broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award.” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300.) Accordingly, as the Court finds that Plaintiff’s counsel’s billing rate and stated hours of work are unreasonable based on the relatively straightforward nature of the issues presented by this discovery motion, the requested amount of sanctions is reduced to \$900.00.

Plaintiff’s

Motion to Compel Defendant’s Initial Responses to Special Interrogatories, Set Three, is DENIED.

Plaintiff’s

request for monetary sanctions is GRANTED in the reduced total amount of \$900.00 against Defendant. Said sanctions shall be paid to counsel for Plaintiff within 30 days of this order.